

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE A SETTLEMENT AGREEMENT WITH WJE, LLC TO RESOLVE THE APRIL 6, 2023 NOTICE OF GOVERNMENTAL CLAIM REGARDING AN ALLEGED TAKING OF REAL PROPERTY IN SADDLE RIDGE ADJACENT TO CHRISTENSEN ROAD."

WHEREAS, on April 6, 2023, through legal counsel, WJE, LLC filed with the City of Cheyenne's City Clerk's office a Notice of Governmental Claim ("Governmental Claim") pursuant to the Wyoming Governmental Claims Act, Wyoming Statute § 1-39-101 *et seq.* alleging the City of Cheyenne had taken real property from WJE, LLC during its construction of the Christensen Road extension;

WHEREAS, WJE, LLC's Governmental Claim specifically alleged that the affected real property included approximately forty (40) acres of property at the northwest corner of the intersection of Pershing Boulevard and Christensen Road;

WHEREAS, WJE, LLC's approved plat allowed for the construction of nineteen (19) home lots adjacent to the road in the Saddle Ridge addition, eighteenth (18th) filing;

WHEREAS, during the construction of the Christensen Road extension, WJE, LLC granted the City of Cheyenne a fifty (50) foot permanent and exclusive easement adjacent to WJE, LLC's Saddle Ridge development;

WHEREAS, WJE, LLC also granted the City of Cheyenne an additional thirty (30) foot temporary easement for construction of the Christensen Road extension. WJE, LLC claimed that at the conclusion of the construction of the road, the property subject to the temporary construction easement would be returned to WJE, LLC for the development of the additional platted nineteen (19) homes in the Saddle Ridge addition, eighteenth (18th) filing;

WHEREAS, when the City of Cheyenne completed the Christensen Road extension, WJE, LLC claimed that the City of Cheyenne made dramatic and permanent changes to the land including removing a significant quantity of dirt/soil, which was relocated to other places;

WHEREAS, WJE, LLC alleged that the removal of the soil/dirt altered the grade in the temporary easement area to approximately thirteen (13) feet lower than the rest of the WJE, LLC's land resulting in a large amount of missing dirt/soil in the area of lands platting for the nineteen (19) lots;

WHEREAS, WJE, LLC estimated that the missing soil/dirt represented approximately forty two thousand, four hundred eighty-four point fifty four (42,484.54) cubic yards. Claimant further estimated the value of the soil/dirt to be between three dollars and fifty cents (\$3.50) to five dollars (\$5.00) per cubic yard, depending on the distance replacement soil/dirt would have to be transported to a given site;

WHEREAS, WJE, LLC alleged the City of Cheyenne appeared to consider the temporary easement area as part of the permanent right of way for Christensen Road preventing the restoration of the thirty (30) foot temporary easement area for the construction of the additional nineteen (19) homes in the Saddle Ridge addition, eighteenth (18th) filing;

WHEREAS, WJE, LLC alleged that the value of the removal of the soil/direct and the altered grade resulted in a reduction in value of the real property in the amount of approximately two hundred fifty thousand dollars (\$250,000);

WHEREAS, although the City of Cheyenne has denied the allegations contained in WJE, LLC's Governmental Claim, it has been engaged in conversations with WJE, LLC in an attempt to resolve this dispute; and

WHEREAS, the City of Cheyenne and WJE, LLC have reached a settlement agreement whereby WJE, LLC has agreed to withdraw its Governmental Claim in exchange for the City's agreement to allow WJE, LLC to donate the relevant proportions of real property related to the thirty (30) foot temporary easement area for an agreed value of two hundred fifty thousand dollars (\$250,000);

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNNE, WYOMING, that the Mayor is hereby authorized and directed to execute a Settlement Agreement and to complete other necessary paperwork.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk